

**No. 9 of 2025**

**VIRGIN ISLANDS**  
**ASSET SEIZURE AND FORFEITURE (AMENDMENT) ACT, 2025**  
**ARRANGEMENT OF SECTIONS**

**SECTION**

1. Short title
2. Section 2 amended
3. Section 3 amended
4. Section 4 amended
5. Section 7 repealed and substituted
6. Section 8 amended
7. Section 12 amended
8. Section 14 amended
9. Schedule 1 amended
10. Schedule 2 repealed and substituted

I ASSENT

(Sgd.) Daniel Pruce,  
Governor.  
10<sup>th</sup> April, 2025

**VIRGIN ISLANDS**

**No. 9 of 2025**

AN ACT TO AMEND THE ASSET SEIZURE AND FORFEITURE ACT, 2020, NO. 20 OF 2020, TO ADDRESS CERTAIN DEFICIENCIES IDENTIFIED IN THE CARIBBEAN FINANCIAL ACTION TASK FORCE (CFATF) FOURTH ROUND MUTUAL EVALUATION REPORT IN RELATION TO COMPLIANCE WITH INTERNATIONAL STANDARDS ON MONEY LAUNDERING AND TERRORIST FINANCING; TO STRENGTHEN AND ENHANCE THE EFFICACY OF THE ACT; AND FOR RELATED MATTERS.

[Gazetted 17<sup>th</sup> April, 2025]

ENACTED by the Legislature of the Virgin Islands as follows:

**Short title**

1. This Act may be cited as the Asset Seizure and Forfeiture (Amendment) Act, 2025.

**Section 2 amended**

2. The Asset Seizure and Forfeiture Act, 2020 (hereinafter referred to as the “principal Act”) is amended in section 2

(a) by inserting, in the appropriate alphabetical sequence, the following definitions:

““Director of Public Prosecutions” means the Director of Public Prosecutions of the Virgin Islands; and

“law enforcement agency” means

(a) the Royal Virgin Islands Police Force;

- (b) His Majesty's Customs; and
- (c) the Financial Investigation Agency;";
- (b) in the definition of the words "designated offence", by deleting the words "an offence specified in Schedule 1" and substituting the words "any criminal offence in the Territory";
- (c) in the definition of the words "proceeds of crime", by deleting paragraph (a) and substituting the following paragraph:  
 "(a) proceeds from any criminal offence; and"; and
- (d) in the definition of the words "serious offence", by inserting after the words "specified in" the words "the enactments listed under".

### **Section 3 amended**

- 3. The principal Act is amended in section 3 as follows:
  - (a) in paragraph (a), by deleting the word "designated" and substituting the word "criminal"; and
  - (b) in paragraph (b), by deleting the word "certain".

### **Section 4 amended**

- 4. The principal Act is amended in section 4 by deleting subsection (2) and substituting the following subsections:

- "(2) The Committee shall comprise the following persons:
  - (a) the Financial Secretary, who shall be the Chairperson;
  - (b) the Managing Director of the Financial Services Commission;
  - (c) the Attorney General;
  - (d) the Director of Public Prosecutions;
  - (e) the Commissioner of Police;
  - (f) the Commissioner of Customs;
  - (g) the Director of the Financial Investigation Agency; and
  - (h) Permanent Secretary, Office of the Premier.

(2A) A member of the Committee may, by written instrument, appoint a suitably qualified person to attend and act as that member's delegate at a meeting of the Committee, and a person so appointed shall, while so attending, be deemed to be a member of the Committee and may exercise the functions of the member who appointed him or her."

### **Section 7 repealed and substituted**

- 5. The principal Act is amended by repealing section 7 and substituting the following section:

### **“Application for management order**

7. (1) The Attorney General or the Director of Public Prosecutions may apply to a court for a management order in respect of any seized property.

(2) An application for a management order pursuant to subsection (1) may be heard by the court at the same time as an order sought in respect of that seized property resulting from the commission of a criminal offence under any of the enactments specified in Schedule 1.”.

### **Section 8 amended**

6. The principal Act is amended in section 8(1)

- (a) by deleting the word “judge” wherever it appears and substituting the word “court”; and
- (b) by inserting after the words “Schedule 1.” the words “or in any other relevant enactment.”.

### **Section 12 amended**

7. The principal Act is amended in section 12 by deleting the words “of this Act.” and substituting the words “and in accordance with the Regulations made under section 19.”.

### **Section 14 amended**

8. The principal Act is amended in section 14

- (a) in subsection (3) as follows:
  - (i) in paragraph (a), by inserting after the word “seizure” the word “, detention”; and
  - (ii) in paragraph (b), by deleting the words “and duly payable under this Act”; and
- (b) in subsection (4) by inserting after the words “Schedule 2” the words “or where so stated, at the discretion of Cabinet.”.

### **Schedule 1 amended**

9. The principal Act is amended in Schedule 1 as follows:

- (a) by deleting the following enactment:

“Mutual Legal Assistance Tax Matters Act, 2003”; and
- (b) by inserting, in the appropriate alphabetical sequence, the following enactments:

“Criminal Justice (International Co-operation) (Enforcement of Overseas Forfeiture Orders) Order, Revised Edition 2020;  
Counter-Terrorism Act, 2021; and  
Proliferation Financing (Prohibition) Act, 2021;”.

## **Schedule 2 repealed and substituted**

**10.** The principal Act is amended by repealing Schedule 2 and substituting the following Schedule:

### **“SCHEDULE 2**

[Section 14]

| ENTITY                                                                        | DISTRIBUTION<br>PERCENTAGE |
|-------------------------------------------------------------------------------|----------------------------|
| Royal Virgin Islands Police Force                                             | 8%                         |
| Financial Investigation Agency                                                | 8%                         |
| His Majesty’s Customs                                                         | 8%                         |
| Immigration Department                                                        | 5%                         |
| Courts                                                                        | 5%                         |
| Ministry of Education                                                         | 10%                        |
| Ministry of Health and Social Services (including<br>prisoner rehabilitation) | 7%                         |
| Office of the Director of Public Prosecutions                                 | 10%                        |
| Ministry of Youth Affairs and Sports                                          | 5%                         |
| Cadet Corp                                                                    | 5%                         |
| Sister Islands Development                                                    | 5%                         |
| Territorial Infrastructure Programme                                          | 5%                         |
| Entrepreneurship Development Programme                                        | 5%                         |
| Ministry of Agriculture and Fisheries                                         | 10%                        |
| Consolidated Fund                                                             | 4%”.                       |

Passed by the House of Assembly this 28<sup>th</sup> day of February, 2025.

(Sgd.) Corine N. George-Massicote,  
Speaker.

(Sgd.) Bethsaida Smith-Hanley,  
Clerk of the House of Assembly.